

Minor has received treatment and has fully recovered and there are no permanent injuries.

The Defendants collectively offered settlement in the amount of \$100,000, of which \$ 64,555.00 is to be paid to Minor through a structured annuity. The deduction of \$ 35,445.00 represents a negotiated deduction from the settlement used to satisfy any liens for medical expenses and to pay for attorney's fees incurred. Petitioner prepared a proposed order to invest the settlement proceeds into a single premium deferred annuity for the benefit of the Minor which will yield \$118,480.96 when she turns 28.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged with the Court on January 23, 2026. No appearance is required at the May 13, 2026 hearing.

13. 9:00 AM CASE NUMBER: C25-01923

CASE NAME: AIDEN RIOS VS. BROOKE KEMPER

***HEARING ON MINOR'S COMPROMISE RE: AIDEN RIOS**

FILED BY: RIOS, AIDEN

TENTATIVE RULING:

Summary

Petitioner Adolfo Rios filed a Petition for Approval of Compromise of Minor Aiden Rios' ("Minor") filed on January 13, 2026 is **granted**, as set forth below. No appearance is required on May 13, 2026.

Background

Petitioner Adolfo Rios filed a Petition for Approval of Compromise of Minor Aiden Rios (DOB 5/29/2011) ("Minor") through counsel Clancy & Diaz, to compromise the claim that Minor had against Brooke Kemper related to an accident that occurred on March 23, 2023 in Walnut Creek, CA. In that accident, Minor sustained injuries including a concussion, headaches, generalized anxiety, and PTSD symptomatology. Petitioner represents that Minor has received treatment but has not fully recovered. Minor continues to experience post-concussive symptoms. The Defendant and an uninsured motorist policy offered settlement in the amount of \$225,000, of which \$ 147,640.78 is to be paid to Petitioner through a structured annuity. The deduction of \$77,359.22 represents a negotiated deduction from the settlement, is used to satisfy any liens for medical expenses and to pay for attorney's fees incurred. Petitioner prepared a proposed order to invest the settlement proceeds into a single premium deferred annuity for the benefit of the Minor which will yield \$164,756.70 in a guaranteed lump sum payment on May 29, 2029

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged on January 13, 2026. No appearance is required at the hearing on May 13, 2026.